

3. Ms. Montelongo Waived her Right to Bring Class Claims Against Bianco

Bianco moves for an order dismissing Plaintiff's class claims. (See Notice of Motion at 1:25.)

The Arbitration Agreement provides that "[t]he Parties agree not to bring any disputes between each other on a collective or class basis; rather, the Parties agree to bring such disputes in arbitration on an individual basis only." (Pedroza Decl. at Exh. B, § 7, p. 3.)

The Court finds that the foregoing provision constitutes a waiver, by Ms. Montelongo, of her right to assert class-claims against Bianco relating to her employment. Ms. Montelongo appears to concede the issue by failing to address it through her Opposition.

Based on the foregoing, the request to dismiss Ms. Montelongo's class claims is GRANTED.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of Phillip Craig

26PR000061

MOTION TO DISPENSE WITH BOND AND ACCOUNTING PURSUANT TO PROBATE CODE §2628

TENTATIVE RULING: The Petition is GRANTED. Bond is ordered discharged pursuant to Probate Code section 2323, subdivision (a). Accountings are hereby waived so long as the conditions under Probate Code section 2628, subdivision (a) continue to be satisfied.